

Court No. - 40

Case :- WRIT - C No. - 1806 of 2025

Petitioner :- Swabhiman Breweries Private Limited

Respondent :- Uttar Pradesh Power Corporation Limited And 3 Others

Counsel for Petitioner :- Mushir Khan

Counsel for Respondent :- Krishna Agarawal, Manu Ghildyal

Hon'ble Shekhar B. Saraf, J.

Hon'ble Vipin Chandra Dixit, J.

1. Heard learned counsel appearing on behalf of the parties.
2. Learned counsel appearing on behalf of the petitioner submits that an application under Clause 6.5 of Electricity Supply Code, 2005 is pending before the authorities. While the said application was pending, it appears that on 31.1.2025 the electricity connection has been disconnected by the authorities.
3. We are of the view that this disconnection appears to be arbitrary in nature and accordingly the authorities are directed to reconnect the electricity connection of the petitioner immediately preferably within a period of three days from date. With regard to the application pending under Clause 6.5 of Electricity Supply Code, 2005, the authorities concerned is directed to decide the same within a period of two months from date, after granting an opportunity of hearing to the petitioner.
4. We make it clear that no coercive measures shall be taken against the petitioner till the decision is taken by the authorities concerned on the pending application under Clause 6.5 of Electricity Supply Code, 2005.
5. With the above direction, the writ petition is disposed of.

Order Date :- 7.2.2025

Kpy

(Vipin Chandra Dixit, J.) (Shekhar B. Saraf, J.)